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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September 14, 2026

CASE NUMBER

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MOTION

Special Motion to Strike (Anti-SLAPP)

MOVING PARTIES

Defendants Danny Strong; Danny Strong Productions; Paolo Nieddu; Carlito Rodriguez; Howard Kurtzman; Matt Pyken; and Dennis Hammer

OPPOSING PARTIES

Plaintiff Khaled Ouaz a/k/a "Kade Wise"

BACKGROUND

This case arises from a dispute between employee and employer.

On July 28, 2025, Plaintiff Khaled Ouaz a/k/a Kade Wise ("Plaintiff") brought suit against Defendants 20th Century Television, Inc., fka 20th Century Fox Television, Inc. ("20th Century"); Lee Daniels Entertainment, Ltd. ("Lee Daniels Ent."); Danny Strong Productions ("Danny Strong Prod."); Imagine Entertainment, Inc. ("Imagine"); Dana Walden ("Walden"); Gary Newman ("Newman"); Lee Daniels ("Daniels"); Danny Strong ("Strong"); Sanaa Hamri ("Hamri"); Paolo Nieddu ("Nieddu"); Brian Grazer ("Grazer"); Carlito Rodriguez ("Rodriguez"); Jonnie Davis ("Davis"); Carolyn Cassidy ("Cassidy"); Howard Kurtzman ("Kurtzman"); Brett Mahoney ("Mahoney"); Diane Ademu-John ("Ademu-John"); Ilene Chaiken ("Chaiken"); Craig Berger ("Berger"); Matt Pyken ("Pyken"); Dennis Hammer ("Hammer"); Joshua Allen ("Allen"); Eric Haywood ("Haywood"); Jasheika James; Janeika James; Dianne Houston ("Houston"); and Jamie Rosengard ("Rosengard").

The operative First Amended Complaint ("FAC") was filed on September 15, 2025, alleging eighteen causes of action as follows:

1.

Breach of Contract

2.

Intentional Misrepresentation

3.

Fraudulent Concealment

4.

Actual Fraud

5.

Defamation of Character

6.

Breach of Implied Covenant of Good Faith and Fair
Dealing

7.

Intentional Interference with Contractual Relations

8.

Intentional Interference with Prospective Economic
Relations

9.

Demotion Discrimination

10. Promotion

Discrimination

11. Political

Discrimination

12. Intersectional

Discrimination

13. Disparate

Impact Discrimination

14. Retaliation

15. Right

of Publicity

16. Civil

Conspiracy

17. Intention

Infliction of Emotional Distress

18. Negligence

Moving Defendants Strong, Danny Strong Prod., Nieddu, Rodriguez,
Kurtzman, Pyken, and Hammer ("Moving Defendants") filed a special motion to
strike, pursuant to Code of Civil Procedure section 425.16 (anti-SLAPP). Plaintiff opposes the motion and Moving
Defendants reply.

LEGAL STANDARD

“A cause of action

arising from a person's act in furtherance of the ‘right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike[...].” (Monster Energy Co. v.

Schechter (2019) 7 Cal.5th 781, 788 (hereafter Monster).) Such lawsuits are commonly known as “SLAPP” suits (Strategic Litigation Against Public Participation). (Id. at fn. 1.)

Background

The California

Legislature enacted Code of Civil Procedure section 425.16, known as the “anti-SLAPP statute” to “allow[] defendants to seek early dismissal of unmeritorious claims arising from protected speech and petitioning activities.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1004 (hereafter Bonni).) “Enacted by the Legislature in 1992, the anti-SLAPP statute is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern.” (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 883–884 (hereafter Wilson).) The anti-SLAPP statute is also designed to expedite the early dismissal of unmeritorious claims arising from protected activity. (Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism (2018) 4 Cal.5th 637, 642; Simpson Strong-Tie Co., Inc. v. Gore (2010) 49 Cal.4th 12, 21.) “The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 384, emphasis in original (hereafter Baral).)

“SLAPPs are

unsubstantiated lawsuits based on claims arising from a defendant's constitutionally protected speech or petitioning activity.” (Kurz v. Syrus Systems, LLC (2013) 221 Cal.App.4th 748, 757 (hereafter Kurz).)

They “seek[] to chill rights to free speech or petition by dragging the speaker or petitioner through the litigation process, without genuine expectation of success in the suit.” (Area

51 Productions, Inc. v. City of Alameda (2018) 20 Cal.App.5th 581, 591–592 (hereafter Area 51 Productions).)

They are “generally brought to obtain an economic advantage over the

defendant, not to vindicate a legally cognizable right of the plaintiff.” (Grenier v. Taylor (2015) 234 Cal.App.4th 471, 479.)

“The Legislature enacted section 425.16 to provide a summary disposition procedure for SLAPP claims.” (Area 51 Productions, supra, 20 Cal.App.5th at p. 592.) The statute “authorizes courts, upon motion by anyone who claims to be the target of a SLAPP suit, to probe the basis for any cause of action allegedly arising from protected communicative activities, and to strike it if the claimant cannot show minimal merit.” (Ibid.) A special motion to strike may only be directed to a complaint, cross-complaint, or petition, but not to an answer or affirmative defenses. (Morris Cerullo World Evangelism v. Newport Harbor Offices & Marina, LLC (2021) 67 Cal.App.5th 1149, 1156-1157.)

Procedure

To determine whether an anti-SLAPP motion should be granted, courts engage in a two-step process and evaluate the merits of the claim(s) using a “summary-judgment-like procedure.” (Baral, supra, 1 Cal.5th at p. 384.) “The procedures authorized in the statute allow a defendant to stay discovery before litigation costs mount, obtain early dismissal of the lawsuit, and recover attorney fees.” (Kurz, supra, 221 Cal.App.4th at p. 757.) A special motion to strike “is not a substitute for a motion for a demurrer or summary judgment.” (Belen v. Ryan Seacrest Productions, LLC (2021) 65 Cal.App.5th 1145, 1161.) And there is no meet and confer requirement prior to filing an anti-SLAPP motion. (Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc. (2021) 59 Cal.App.5th 995, 1008.)

First Step

In the first step, the moving defendant has the initial burden of showing that the challenged cause of action arises from protected free speech or petitioning activity. (Bonni, supra, 11 Cal.5th at p. 1009; Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1061 (hereafter Park).) “The defendant’s first-step burden is to identify the activity each

challenged claim rests on and demonstrate that that activity is protected by the anti-SLAPP statute.” (Wilson, supra, 7 Cal.5th at p. 884.) When the defendant has not met this burden, the court may summarily deny the special motion to strike “without putting the plaintiff to the burden of establishing the probability of success on the merits.” (Whitehall v. County of San Bernardino (2017) 17 Cal.App.5th 352, 360 (hereafter Whitehall).)

“[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (Park, supra, 2 Cal.5th at p. 1063.) It is not enough that a claim was filed after or even “because of” protected activity, but rather the protected activity must “supply elements of the challenged claim.” (Id. at p. 1064, emphasis added.) Moreover, courts “must distinguish between speech or petitioning activity that is mere evidence related to liability, and liability that is based on speech or petitioning activity.” (Whitehall, supra, 17 Cal.App.5th at p. 361.)

Moreover, the anti-SLAPP statute does not require a defendant “to disprove allegations of illicit motive.” (Wilson, supra, 7 Cal.5th at p. 887.) Courts must distinguish between “allegations of conduct on which liability is based” and “allegations of motives for such conduct” because “the anti-SLAPP statute is triggered only when the alleged injury-producing conduct is protected activity, not merely the motivating conduct for that activity.” (Gaynor v. Bulen (2018) 19 Cal.App.5th 864, 887 (hereafter Gaynor), emphasis added.)

However, a defendant’s motives are not “categorically off-limits in determining whether an act qualifies as protected activity under the anti-SLAPP statute” but “the plaintiff’s allegations cannot be dispositive of the question.” (Wilson, supra, 7 Cal.5th at p. 889.) “[W]hether the defendant’s act qualifies as one in furtherance of protected speech or petitioning will depend on whether the defendant took the action for speech-related reasons.” (Ibid.) “But there is an important difference between

permitting the defendant to present evidence of its own motives in an effort to make out its prima facie case of protected activity and treating a plaintiff's allegations of illicit motive as a bar to anti-SLAPP protection," which is not proper. (Ibid.)

Second Step

Once the court finds the defendant has made the threshold showing, the "the burden then shifts to the plaintiff to show a probability of prevailing on [the] claims." (De Havilland v. FX Networks, LLC (2018) 21 Cal.App.5th 845, 854.) To meet this burden, "the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 211.) "[T]he plaintiff must then demonstrate its claims have at least 'minimal merit.' " (Park, supra, 2 Cal.5th at p. 1061.) "[A] plaintiff seeking to demonstrate the merit of the claim 'may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.'" (Monster, supra, 7 Cal.5th at p. 788.) "[A] court must at the second step accept as true the evidence favorable to the plaintiff" but is not required to give "similar credence" to allegations in the complaint "in the face of contrary evidence." (Wilson, supra, 7 Cal.5th at p. 887.)

This procedure is essentially a summary judgment motion in reverse. (Area 55, LLC v. Nicholas & Tomasevic, LLP (2021) 61 Cal.App.5th 136, 152.) "Rather than requiring the defendant to defeat the plaintiff's pleading by showing it is legally or factually meritless, the motion requires the plaintiff to demonstrate that he possesses a legally sufficient claim which is 'substantiated,' that is, supported by competent, admissible evidence." (Ibid.) "Consistent with this summary-judgment-like procedure, the court "must draw all reasonable inferences from the evidence in favor of [the party opposing the anti-SLAPP motion]." (Ibid.) "Only a [cause of action] that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP suit, subject to being stricken under the statute." (Sheley v. Harrop (2017) 9 Cal.App.5th 1147, 1162.)

EVIDENTIARY OBJECTIONS

The

Court rules as follows with respect to Moving Defendants' evidentiary objections to Plaintiff's declaration:

1. Sustained
2. Sustained
3. Sustained – relevance
4. Sustained – relevance
5. Sustained
6. Sustained
7. Sustained
8. Sustained
9. Sustained
10. Sustained
11. Sustained
12. Sustained – relevance
13. Sustained
14. Sustained – relevance
15. Sustained
16. Sustained
17. Sustained

18. Sustained

19. Sustained

20. Sustained

21. Sustained

22. Sustained

23. Overruled

24. Sustained – relevance

25. Sustained

26. Sustained

27. Sustained

28. Sustained

29. Overruled

30. Overruled

31. Sustained – relevance

32. Sustained

33. Sustained

34. Sustained

35. Sustained

DISCUSSION

1.

Protected

Activity

Code of Civil Procedure

section 425.16, subdivision (e) provides:

“As used in this section, ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: [...] (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

Moving Defendants argue that each

of the causes of action alleged is premised upon or arises from the rights of free speech and free expression in a public forum on issues of public interest, pursuant to Code of Civil procedure section 425.16, subdivisions (e)(3) and (4).

Indeed, Plaintiff’s operative

FAC stems from allegations that Defendants asked him to wear the “politically sensitive” keffiyeh while portraying a Muslim rapper on the television show Empire, which Plaintiff did wear for the first day of filming, then asked if he could take it off for subsequent filming days, which was denied. (FAC ¶¶ 4.10, 4.13, 4.16, 4.17.) Plaintiff’s initial two-episode arc was then

extended for an additional two episodes, after which they declined to exercise Plaintiff’s option for additional episodes. (FAC ¶¶ 4.18-4.19.)

Indeed, as Plaintiff concedes

in opposition, “Empire is an expressive television program. Its writing, costuming, performances, editing, production, and broadcast may implicate constitutionally protected activity. The pro-Palestine Keffiyeh scarf carries political significance.

Israel-Palestine and the representation of perceived Muslim and Arab identities are matters of public concern.”

(Opposition at p. 5.)

Instead, Plaintiff argues that

protected activity must constitute an element of each challenged cause of action. The Court agrees. However, as discussed below, at least one essential element of each challenged cause of action is premised upon Defendants' decision to have Plaintiff's politically conscious Muslim rapper character don a Keffiyeh in his appearance on the television program, which is an act in furtherance of Defendants' right of free speech in connection with a public issue.

a. First Cause of Action – Breach of Contract

As for the first cause of action for breach of contract, Plaintiff alleges Defendants breached two specific provisions of the contract: the consent exclusions clause and the indemnification clause. (FAC ¶¶ 8.8, 8.11.)

The consent exclusions clause prohibits "Fox" from using Plaintiff's "name, voice or likeness in connection with the merchandising of, or commercial tie-ins to political or religious advertising." (FAC ¶ 8.8.) Plaintiff alleges Defendants violated this clause by "direct[ing]" and "forc[ing]" Plaintiff "to wear a Keffiyeh on camera" which "is viewed as a deeply political and religiously charged symbol affiliated with Palestinian nationalism and resistance movements, particularly amid geopolitical tensions involving Israel and Palestine" and which "effectively linked [Plaintiff's] likeness to a polarizing international symbol on a show distributed by a network deeply interwoven with pro-Israel interests[.]" (FAC ¶ 8.9.)

Similarly, the indemnification clause indemnifies Plaintiff from any and all damages, claims, and losses arising from "The addition, subtraction or alteration by Fox of any results and proceeds of Players services;" "Materials specifically furnished by Fox for use by [Plaintiff];" and "The development, production, distribution, and/or exploitation of the Series or elements thereof." (FAC ¶ 8.11.) Plaintiff alleges Defendants violated the indemnification clause because forcing him to wear the "politically sensitive wardrobe" caused his role to be diminished and altered, as well as reputational harm and economic fallout. (FAC ¶ 8.12.)

Thus, Plaintiff alleges Defendants breached these two provisions of his contract by forcing him to don the politically-charged keffiyeh on camera in connection with his portrayal of a Muslim rapper on the program. As such,

the first cause of action arises out of an act in furtherance of Defendants' right of free speech in connection with a public issue.

b. Fraud-Based Causes of Action

Plaintiff's second, third, and fourth causes of action for intentional misrepresentation, fraudulent concealment, and fraud are premised upon allegations that Defendants furnished and/or directed Plaintiff "to wear the Keffiyeh without disclosing its contractual implications or political sensitivity" which created an implication and/or representations were made that Plaintiff consented to wear a politically symbolic clothing item (FAC ¶¶ 9.1, 10.2, 11.2.) Specifically, Plaintiff alleges he was directed to wear the Keffiyeh scarf on camera, but "there was no disclosure that this wardrobe choice fell under a Consent Exclusions clause" or "that my likeness had been used in a manner that triggered indemnification rights" or "that I had any legal recourse based on the undisclosed nature of the scarf's symbolism." (FAC ¶¶ 9.5, 10.3, 11.2.)

Thus, Plaintiff's second, third, and fourth causes of action based in fraud, are all premised upon the same act in furtherance of Defendants' right of free speech in connection with a public issue.

c. Fifth Cause of Action – Defamation of Character

Plaintiff's fifth cause of action for defamation of character is premised on statements Defendants supposedly made about Plaintiff "including untrue implications of political radicalism and anti-Israel ideology[.]" (FAC ¶ 12.4.) As Plaintiff himself alleges in connection with the fifth cause of action, "Political expression — especially around foreign affairs — is protected under both the California Constitution and the First Amendment to the U.S. Constitution." (FAC ¶ 12.8.)

Thus, the fifth cause of action similarly arises out of an act in furtherance of Defendants' right of free speech in connection with a public issue.

d. Sixth Cause of Action – Breach of Implied

Covenant of Good Faith and Fair Dealing

Plaintiff's sixth cause of action for breach of the implied covenant of good faith and fair dealing is premised upon Defendants' "willful misconduct, fraudulent concealment, and retaliatory disregard of good faith obligations" involving "discretionary authority over the casting, image approvals, and dispute resolution[.]" (FAC ¶ 13.1, emphasis added.) Specifically, it is premised upon allegations that Plaintiff's agreement "governed not only my performance obligations and likeness rights, but also contained express provisions specifically limiting the use of politically charged material without consent, requiring indemnification for misrepresentation." (FAC ¶ 13.4.)

Thus, like the breach of contract and fraud-based causes of action, Plaintiff's sixth cause of action is similarly premised upon acts in furtherance of Defendants' right of free speech in connection with a public issue.

e. Seventh Cause of Action – Tortious Interference with Contractual Relations

Plaintiff's seventh cause of action for tortious interference with contractual relations is likewise premised upon the "politically sensitive wardrobe directive" that "substantially disrupted a valid employment contract between [Plaintiff] and 20th Century Fox Television." (FAC ¶ 14.1.) Specifically, "at the heart of this claim lies a targeted and knowing interference with an existing and valid employment contract – one that contained express consent limitations and indemnification provisions regarding the use of politically symbolic materials. Despite those terms, [Defendants] – without seeking approval or confirming any restrictions – unilaterally directed [Plaintiff] to wear a Keffiyeh, a resistance symbol of geopolitical implications, on screen." (FAC ¶ 14.3.)

Thus, Plaintiff's seventh cause of action is similarly premised upon acts in furtherance of Defendants' right of free speech in connection with a public issue.

f. Eighth Cause of Action – Tortious

Interference with Prospective Economic Relations

Plaintiff's eighth cause of action is also premised upon the reputational harm Plaintiff suffered as a result of wearing the Keffiyeh on screen and/or the defamatory statements made about Plaintiff's vis-à-vis the Keffiyeh he wore on screen. (FAC ¶¶ 15.2, 15.4.)

g. Discrimination-Based Causes of Action

Plaintiff's ninth cause of action for demotion discrimination is premised upon Defendants' "subconscious[] associate[ion]" of Plaintiff "with the political image [he] was forced to wear [...] on camera that linked [him] to anti-Israel sentiments[.]" (FAC ¶ 16.5.)

Plaintiff's tenth cause of action for promotion discrimination is premised upon allegations that Plaintiff was "forced to wear politically loaded attire that, in the context of a pro-Israel corporate entity, tethered me to negative and false associations" and was subsequently denied his series regular option. (FAC ¶ 17.3.)

Plaintiff's eleventh cause of action for political discrimination is likewise premised upon Defendants' denial of Plaintiff's request to remove the Keffiyeh, which subsequently "triggered irreversible professional fallout" as he was "sidelined and eventually blackballed." (FAC ¶ 18.3.)

Plaintiff's twelfth cause of action for intersectional discrimination is premised upon "The Keffiyeh's symbolism" within "the broader Israel-Palestine context" and "the environment of a pro-Israel Network[.]" (FAC ¶ 19.11.) As such, the twelfth cause of action is similarly premised upon Defendants' acts in furtherance of their right of free speech in connection with a public issue.

Plaintiff's thirteenth cause of action for disparate impact discrimination is premised upon "the forced continuation of a politicized costume, the subsequent demotion and exclusion[.]" (FAC ¶ 20.7.)

Plaintiff's fourteenth cause of action for retaliation alleges: "The Keffiyeh I was told to wear on-screen triggered discomfort at the network level, and once I was visibly tied to its political meaning, retaliation began." (FAC ¶ 21.2.)

Thus, the ninth through fourteenth causes of action are premised upon Defendants' acts in furtherance of their right of free speech in connection with a public issue.

h. Fifteenth Cause of Action – Right of Publicity

Plaintiff's fifteenth cause of action for right of publicity is premised on allegations that "I was asked to wear a politically symbolic item – a Keffiyeh – in my very first scenes" and "From the moment I performed 'Handle the Heat' in that costume, I believe Fox executives – particularly those with pro-Israel affiliations – became alarmed. My presence, once celebrated, became controversial. What had been a hire suddenly became a liability. My likeness was no longer neutral – it was politicized." (FAC ¶¶ 22.3-22.4.)

As such, the fifteenth cause of action is premised upon Defendants' acts in furtherance of their right of free speech in connection with a public issue.

i. Sixteenth Cause of Action – Civil Conspiracy

The sixteenth cause of action for civil conspiracy is premised upon "the wrongful acts set forth in this petition." Because all previously alleged causes of action are premised upon costuming Plaintiff in a keffiyeh during the filming of his scenes in the show Empire, the sixteenth cause of action is equally premised upon acts in furtherance of Defendants' right of free speech in connection with a public issue.

j. Seventeenth Cause of Action – Intentional Infliction of Emotional Distress

Plaintiff's seventeenth cause

of action for intentional infliction of emotional distress is similarly premised upon the “extreme and outrageous conduct” that Plaintiff was “manipulated into wearing a politically symbolic garment” and then “silenced, demoted, and erased[.]” (FAC ¶ 24.11.)

k. Eighteenth Cause of Action – Negligence

Plaintiff’s eighteenth cause

of action for negligence is premised upon Defendants’ alleged breaches of their duties to Plaintiff “through silence, omission, or inaction” by allowing the alleged “misconduct” to occur. (FAC ¶ 25.1) Because all of the “misconduct” alleged above is premised upon acts in furtherance of Defendants’ right of free speech in connection with a public issue, so too is Plaintiff’s eighteenth cause of action.

2. Probability of Prevailing on the Claims

Once it is established that

the causes of action are premised upon acts in furtherance of Defendants’ rights of free speech in connection with a public issue, the burden shifts to Plaintiff to demonstrate a probability of prevailing on the claims.

The Court previously sustained the demurrer of Defendants Twentieth Century Fox Film Corporation d/b/a 20th Television, f/k/a Twentieth Century Fox Television (incorrectly sued as “20th Century Studios, Inc. f/k/a 20th Century Fox Television, Inc.; Lee Daniels Entertainment, Ltd.; Imagine Entertainment, LLC; Dana Walden; Gary Newman; Lee Daniels; Sanaa Hamri; Brian Grazer; Carolyn Cassidy; Diane Ademu-John; Ilene Chaiken; Craig Brewer; Joshua Allen; Eric Haywood; and Jamie Rosengard (the “Fox Defendants”) on the following grounds:

1.

Plaintiff’s breach of contract cause of action failed

to allege facts sufficient to constitute a cause of action because Plaintiff did not allege any breach of the two identified clauses of his contract. The consent exclusions clause precluded Fox from using Plaintiff’s name, voice, or likeness in connection with the merchandising of or commercial tie-ins to political or religious advertising, and the indemnification clause required Fox to indemnify, defend, and hold Plaintiff harmless from and against any and all third party claims, liability,

losses, damages, costs, expenses, judgments, and penalties arising out of issues pertaining to the production, distribution, and/or exploitation of the series. The Court determined that the indemnification provision did not require Fox to indemnify Plaintiff against losses from Fox's decision not to pick up the option to make Plaintiff a series regular, and the use of Plaintiff's image and likeness in connection with the program itself, as alleged, did not pertain to advertising, as addressed by the consent exclusions clause.

2.

The second, third, fourth, sixth, seventh, eighth, fifteenth and sixteenth causes of action were all derivative of and/or dependent upon the same deficient breach of contract allegations

3.

The fifth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, seventeenth or eighteenth causes of action were time barred and Plaintiff did not adequately allege facts demonstrating that the delayed discovery rule revived them.

The Court sustained the demurrer without leave to amend, finding that despite being given several opportunities to do so, Plaintiff failed to articulate facts that could cure the deficiencies identified above, and therefore granting leave to further amend the complaint would be futile. (See Minute Order, Apr. 30, 2026.)

On May 11, 2026, the Court denied Plaintiff's motion for reconsideration of the Court's order sustaining the Fox Defendants' demurrer.

As to the Moving Defendants herein, the FAC alleges:

3.3. DANNY STRONG PRODUCTIONS — is an entity of unknown form doing business in California, and the production company involved in the original creation, development and production of Empire. It is sued in its corporate capacity.

3.8 DANNY STRONG — is an individual believed to reside in California and is sued in his personal capacity and, where applicable, in his official capacity as founder and executive of Danny Strong Productions. Mr. Strong is best known as the co-creator and executive producer of Empire, and he held significant creative

and production authority over the series.

3.10 PAOLO MICHEL NIEDDU — is an individual believed to reside in California and is sued in his personal capacity and, where applicable, in his official capacity as an agent or employee of 20th Century Fox, Lee Daniels Entertainment, or Danny Strong Productions. Mr. Nieddu was the lead costume designer on Empire and shared creative control over wardrobe and public presentation with Ms. Hamiri during the relevant period.

3.12 CARLITO RODRIGUEZ — is an individual believed to reside in California and is sued in his personal capacity and, where applicable, in his official capacity as an agent or employee of 20th Century Fox, Lee Daniels Entertainment, or Danny Strong Productions. Mr. Rodriguez served as a senior executive producer and writer on Empire.

3.13. JONNIE DAVIS, CAROLYN CASSIDY, AND HOWARD D. KURTZMAN — are individuals believed to reside in California and are sued in their personal capacities and, where applicable, in their official capacities as former executives affiliated with 20th Century Fox. each held leadership roles — including oversight of programming and talent development — with decision-making authority that plausibly impacted hiring, promotion, and casting.

3.14 BRETT MAHONEY, DIANE ADEMU-JOHN, ILENE CHAIKEN, CRAIG HOUSTON BREWER, DENNIS HAMMER, MATT LEWIS PYKEN, JOSHUA ALLEN, ERIC HAYWOOD, JANEIKA JAMES, JASHEIKA JAMES, JAMIE ROSENGARD, AND DIANNE HOUSTON — are individuals named as vicariously liable defendants based on their roles as writers, producers, or executives affiliated with Empire during the relevant time period. They are sued in their official and/or personal capacities where applicable.

8.3 Paolo Nieddu, serving as costume designer for the production, similarly operated as an agent of 20th Century Fox and participated in the furnishing of materials that led to the contract's violation. His actions, in coordination with Defendant Ms. Hamri, altered my onscreen appearance and directly contributed to the use of my likeness in connection with political messaging, a protected exclusion under the contract.

8.4. Dana Walden, Gary Newman,
Jonnie Davis, Carolyn Cassidy, and Howard

Kurtzman, as senior executives overseeing the production and legal signatories or ratifiers of the employment terms, may bear managerial responsibility. Their role in concealing the contract breach may support theories of ratification or deliberate failure to mitigate ongoing harm.

8.5 I further allege that Lee

Daniels Entertainment, Danny

Strong Productions, and Imagine

Entertainment may have acted as co-participants in the breach, or subsequently ratified it by failing to disclose or remedy the misconduct committed by agents under their operational direction. I reserve the rights to amend this complaint to formally name: them as responsible parties based on evidence adduced during discovery; and The Walt Disney Company as a successor-in-interest should discovery demonstrate sufficient grounds for parent liability.

Here,

Moving Defendants are alleged to be responsible as agents/co-participants in the same manner as the Fox Defendants.

Further,

the allegations against Hammer and Pyken are identical to the allegations against Defendants Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard.

Likewise,

the allegations against Kurtzman are identical to the allegations against Defendants Cassidy, Walden, and Newman; the allegations against Strong and Danny Strong Productions are identical to the allegations against Defendants Daniels, Grazer and their production entities; and the same rationale applies to both Defendant Hamri and Moving Defendant herein Nieddu, as both Nieddu and Hamri were involved in the costuming department.

Therefore, the same rationale upon

which the Court sustained the Fox Defendants' demurrer to the Complaint applies to Moving Defendants herein.

Further, as demonstrated by

the Court's ruling on Moving Defendants' evidentiary objections, Plaintiff has not met his burden to provide admissible evidence demonstrating a probability of prevailing on his claims.

But even if the Court were to consider the arguments in Plaintiff's declaration, they are unavailing. The crux of Plaintiff's argument is that (1) the delayed discovery rule saves his claims from the statute of limitations because he had difficulty obtaining a copy of his contract and (2) Defendants used Plaintiff's image and likeness in the keffiyeh in connection with advertising for Empire, which resurrects his breach of contract claim and all derivative claims.

As for Plaintiff's difficulty obtaining a copy of his contract, the materials Plaintiff submitted to this Court on May 11, 2026 in connection with his motion for leave to amend or in the alternative reconsideration demonstrate at most a nine-day delay in obtaining his contract from October 14-16, 2024 when he first communicated with SAG-AFTRA personnel about it to October 23, 2024, when Plaintiff actually obtained and reviewed it. Even if the delayed discovery rule tolled the statute of limitations from October 14 to October 23, the statute had already long expired by October 14, 2024 when Plaintiff first reached out to SAG-AFTRA about obtaining a copy.

With regard to Plaintiff's argument that Defendants used his image and likeness in the keffiyeh in connection with "promotional trailers, recap videos, and performance videos appearing on official Empire/Fox-affiliated platforms, IMDb, and the official Empire Facebook page" Defendants' use of Plaintiff's image and likeness in the keffiyeh in connection with advertising the program Empire does not violate the plain language of the consent clause, which prohibits using Plaintiff's image or likeness in connection with religious or political advertising. Thus, Plaintiff has still not demonstrated a probability of prevailing on a cognizable breach of contract claim.

Even further, as Moving Defendants point out, the alleged contract is between Plaintiff and Fox, not Moving Defendants herein. Thus, Plaintiff's breach of contract related claims against Moving Defendants are more attenuated than as asserted against the Fox Defendants.

As such, Plaintiff has not demonstrated a probability he can prevail on any of his claims.

CONCLUSION AND ORDER

For the foregoing reasons, the Court finds an essential element of each of Plaintiff's eighteen claims is premised upon Defendants' decision to costume Plaintiff in the politically significant keffiyeh in connection with his appearance on the television program "Empire," and therefore arises from acts in furtherance of Defendants' rights of free speech in connection with a public issue, and Plaintiff has not met his burden of demonstrating a probability that he can prevail on any of his claims.

Consequently, the Court grants Moving Defendants' special motion to strike Plaintiff's complaint in its entirety. Further, the Court orders Moving Defendants to lodge a proposed Order in conformity with the ruling on or before September 24, 2026.

Moving Defendants shall provide notice of the Court's ruling/Order, and file the notice with a proof of service forthwith.

DATED:

September 14, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court